

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: CHARLES S TREAT
HEARING DATE: 06/25/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1.	9:00 AM	CASE NUMBER:	C23-02411	CASE NAME: MATTHEW KUYKENDALL VS. BRENDA TINER SETTLEMENT CONFERENCE FILED BY: <u>*TENTATIVE RULING:*</u>
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Parties and counsel to appear for settlement conference. See also Line 4.

2.	9:00 AM	CASE NUMBER:	C25-01410	CASE NAME: LUIS BARRERA VS. OSVALDO GARCIA *FURTHER CASE MANAGEMENT CONFERENCE FILED BY: <u>*TENTATIVE RULING:*</u>
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See Line 10 below. Defendant's counsel may attend the CMC by Zoom.

3. 8:59 AM CASE NUMBER: C25-02588
CASE NAME: COOL BEANS ENTERTAINMENT LLC, VS. CHRISTINE SORIANO
*EX PARTE REQUEST FOR TEMPORARY RESTRAINING ORDER AND ORDER TO SHOW CAUSE RE:
PRELIMINARY INJUNCTION
FILED BY:
TENTATIVE RULING:

Counsel to appear (in person or by Zoom).

This is a preliminary injunction motion centering on control and operation of several residential care facilities for elders. The Court will be prepared to rule on the motion as an adversary matter, if that is necessary (although a little more time to master the extensive evidence presented would be useful). In the meantime, however, it appears to the Court that there is, or should be, a basis for the parties to agree on an interim solution that protects both sides' interests while they proceed to litigate the corporate-control issues in the case. The Court is calling the attorneys in for a hearing on the noticed date to explore what may be feasible in that regard, and on what time line.

At base this is a corporate-control dispute. The present preliminary injunction motion, however, does not (at least on its face) center on direct issues of corporate ownership and control. Instead, the focus of the motion is on plaintiffs' contention that there are various forms of emergency in the facilities as to resident care and financial solvency. In particular, Plaintiff contends that care and management staffing are drastically insufficient, and that the facilities are unable to pay vendors and payroll sufficiently for proper operation of the facilities. Defendants deny these factual assertions, contending that the management and fiscal situations are well in hand and that plaintiffs' cries of alarm are factually false and manufactured for litigation effect. Defendants also contend that DSS is already properly on top of the situation and can be counted on to take any steps necessary for urgent concerns of resident care and fiscal solvency.

The Court intends to pass over (for now) the underlying disputes about corporate control, which aren't really implicated on the specific relief sought or resisted on this motion. Instead, it will focus not on those issues (such as what did or didn't happen in a board meeting last year), but on what is to be done with running these facilities while the litigation is going on.

What has caught the Court's attention, and has led directly to this intermediate order, is the point that **both sides are proposing the same structural solution** – namely, the hiring of professional third-party management companies to run the facilities (and their immediate finances) pending litigation. Thus, despite all the factual disagreements and bitter rhetoric, the choice before the Court isn't *whether* to arrange a third-party administrator, but only *which one*, and on what terms of independent operation. The Court, in tomorrow's hearing, proposes to take both sides at their earnest words in this respect, and explore how they may be able to agree on a compromise interim solution along exactly these lines.

Specifically, Plaintiff identifies the relief sought on page 2 of their application:

Plaintiff seeks interim equitable relief appointing a neutral third-party administrator and the immediate execution of management agreements to assume control over day-to-day operations, ordinary course financial transactions, staffing, and regulatory